

Smoke Free Policy

Version 1

	Ted's Cameras	Version: 2
Number 14	Smoke Free Policy	Issue Date: 17/08/2022

SMOKE FREE Policy Non-Smoking & Non- Vaping

1. Purpose

Ted's Cameras is committed to providing a healthy and safe environment; one which enhances the experience for customers and allows employees to work without risk of injury or illness.

The intent is to:

Provide a 'smoke free environment" for all Ted's Cameras stores, warehouses and offices. Cigarettes, electronic cigarette vapers and anything that resembles a tobacco product are not permitted in the workplace.

Prevent injury or illness in the workplace

Protect air quality

2. Scope

This procedure applies to all employees, customers, contractors, service providers and visitors (defined as 'persons') and applies to stores, warehouses and offices.

In accordance with legislation, (*refer 9 Legislation*) and the Occupational Health & Safety Act 2004, the Smoke-free Policy extends to all Ted's Cameras property including:

Buildings

Carparks

Vehicles

Facilities

Within five metres of access points to buildings such as doors, windows, near air-conditioning vents and ducts

Enclosed workplaces

Other property owned or leased by The Homewares Group and

Other areas designated as no smoking areas by signage.

3. Exclusions

N/A

4. Policy

Steps & Actions

<u>Procedure</u>		<u>Responsibility</u>
The objective of this policy is to create a 'smoke free environment' for the benefits of all employees, contractors, service providers, clients, customers and visitors by providing an environment that:		All employees of Ted's Cameras
	Reduces the risk of smoking related illnesses in our employees	
	Reduces fire related risks with company facilities	

	Minimises the exposure of tobacco smoke and vapour within premises	
	Raises awareness of the health risks associated with smoking	
	Provides a cleaner environment for the well-being of employees, contractors, customers and others	
	Promotes a community that actively encourages and welcomes a 'smoke free environment'	
	Provides resources and support for employees wanting to quit smoking.	

5. Responsibilities

All persons who have a responsibility for the management of others are accountable for the health and safety of the work environment and for the health and safety of all employees, contractors and customers.

However, health and safety responsibilities are shared with all members of Ted's Cameras and we must cooperate to ensure health and safety is maintained for all people within the workplace.

Exposure to second-hand smoke is a known health hazard and there is no safe level of exposure. Because of this, general legal duties around health and safety may in practice call for smoke-free workplaces. For example:

Under the Occupational Health and Safety Act 2004 employers have a duty to provide a safe and non-hazardous working environment for employees.

Employers owe employees a duty of care under the common law: they must take reasonable care to protect employees' health and safety in the workplace.

The Disability Discrimination Act 1992 and other legislation protect the rights of people with disabilities and susceptibilities (including for example, people with asthma).

6. Designated Smoking Areas

There are no current designated smoking areas.

Smoking areas may be designated by the companies at its sole discretion. When smoking in a designated smoking area, the companies will provide where practicable means of disposing with cigarette litter. All those who utilise such areas are responsible for ensuring that cigarettes are extinguished completely and that litter is disposed of properly and not left on the ground and surrounding areas.



7. Resources: Employee Assistance

In the interest of having a health and safe workforce, employee's who smoke can be provided with assistance to quit smoking. The following specialist resources are available to assist you:

QUIT line: 13 78 48

The Quitline is a confidential telephone service that can offer you advice and information to help you quit smoking. Calling the Quitline is one of the most effective ways of quitting smoking.



Quit Coach on <http://www.quitcoach.org.au/>

Quit Coach provides you with a personalised quitting plan.



Cancer Council: 13 11 20 <https://cancer.org.au/preventing-cancer/reduce-your-risk/quit-smoking.html>

Smoke free Gov <https://smokefree.gov/>

Smokefree.gov is an initiative from the National Cancer Institute to help you or someone you care about quit smoking.

Benefits to workplaces of going smokefree



Tobacco smoking contributes to more deaths and hospitalisations than alcohol and illicit drug use combined.



Smokers are 1.4 times more likely to be absent from work than non-smokers.



The strain put on workers' bodies by smoking often causes years of suffering.



Tobacco smoke contains over 7,000 chemicals; at least 69 of which are known to cause cancer.

8. Policy Breach

In the event that there is a breach of this policy, the following actions may be taken:

a warning or direction will be provided to the person (s) verbally to comply with the Smoke Free Policy

If there is further failure to comply with warning or direction disciplinary action may be taken for any employee (s)

If there is a failure to comply with a warning or direction a person (s) that is a contractor, service provider, client, customer and / or any visitor may be asked to leave the store, warehouse or office.

9. Legislation

Federal law bans smoking in all Australian Commonwealth government buildings, public transport, airports, and international and domestic flights. Further bans are in place but are governed by individual states.

Currently all Australian states and territories have banned smoking in vehicles with children, in some enclosed public places, particularly most major company-owned workplaces, and most enclosed restaurants.

The Australian Government has made very few laws on electronic cigarettes and leaves it up to the states.

However, this does not prevent individual establishments and workplaces from developing their own policies to ban staff and customers using electronic cigarettes on their premises.

For a full listing of legislation refer https://en.wikipedia.org/wiki/List_of_smoking_bans_in_Australia

10. Definitions

Persons: employees of Ted's Cameras , customers, contractors, service providers and visitors (defined as 'persons') and applies to stores, warehouses and offices.

Smoking: includes all forms of smoking involving the emission of smoke from the burning of tobacco leaf or other substances or 'vapour' from electronic cigarettes.

Electronic cigarettes: an electronic cigarette is a battery powered device which delivers nicotine to the user. The most important difference between tobacco cigarettes and electronic cigarettes is that they do not contain or burn tobacco and do not create smoke. It is the inhalation of smoke that causes harm. The devices typically contain water and propylene glycol. The propylene glycol helps vaporise the liquid nicotine, so that it evaporates when a user sucks on the device enabling it to be delivered to the person using the electronic cigarette.

E-cigarettes pose health risks and contain detectable levels of carcinogens and toxic chemicals. These chemicals are also present in second hand emissions. E-cigarettes are not a safe alternative to smoking, and there is no scientific evidence that they help smokers quit.

'Vaping': inhaling and exhale the vapour produced by an electronic cigarette or similar device or electronic nicotine delivery system.

Facilities: means and includes a physical location or building, stores, warehouse, offices of any kind, air space, ground space and rights or items of any nature or description owned, operated and administered by Ted's Cameras .

Visitor: any person who is visiting or Ted's Cameras .

Companies: Ted's Cameras

11. References

Health & Safety Act (2004)

World Health Organisation

Workplace OHS

Wikipedia

Resources: Quit Line, Quit Coach, Cancer Council Australia, Smoke-Free.Gov

12. Related documents

Acceptable Behaviours Induction

Work Health & Safety Policy

Drug & Alcohol Policy

Induction & Training Procedure

13. Version control

Version	Description of Changes	Date Issued	Author
1	Document created and approved	28 March 2018	SD
	Two year review	28 March 2020	
2	Document reviewed and updated	17 August 2022	RE
	Two year Review	17 August 2024	

Further assistance

Further information, advice or assistance on any matters related to health, safety and well-being is available by contacting HR.